

JURISDICTIONAL STATEMENT

Complaint was filed in the United States District Court for the Northern District of Illinois, Western Division, Rockford, Illinois, on the 10th day of April, 1987. Jurisdiction in that Court was based upon 28 USC 1331, 28 USC 1343, 28 USC 2201, and pursuant to the provisions of 42 USC, 1983, 1985, 1986 and 1988, ancillary, pendent claim and pendent party jurisdiction, Bill of Rights and the Fourteenth Amendment.

MEMORANDUM OPINION AND ORDER was dated in the Court below on the 3rd day of October, 1988, granting Motion to Dismiss as to Defendant Mahoney and Summary Judgment to other Defendants. This appeal is from that final order and other adverse rulings.

Appeal to the United States Court of Appeals for the Seventh Circuit was invoked pursuant to 28 USC 1291 by Notice of Appeal filed in the Court below on the November 1, 1988, from the final decision of the Court below dated on the 3rd day of October, 1988. Appellants appeared below and here under 28 USC 1654.

STATEMENT OF THE CASE

A. NATURE OF THE CASE: This action arises from a civil complaint for damages for violation of 42 USC 1983, 1985, 1986, 1988; Bill of Rights; Amendment 14; trespass and conversion; relief under 28 USC 2201 and Rule 60(b). The predicate facts for such complaint stem from an Illinois state action in replevin of farming assets done without notice. Defendants are the state judge, sheriff and deputies, bank, bank directors and officers, lawyers and law firm who participated in such state action.

B. COURSE OF THE PROCEEDINGS: Complaint in this action was